

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Naomi Torres,

Plaintiff,

— against —

City of New York, Michael Conway, Sean
Philips, Michael Conte, Alban Lekaj, James
O'Brien, and John Does ##1-5,

Defendants.

Index No.

SUMMONS

JURY TRIAL DEMANDED

To the above-named Defendants: You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint. The basis of venue is the location where the claims arose.

TO:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street New York,
New York 10007

Michael Conway
103rd Precinct
168-02 91st Ave,
Jamaica, NY, 11432-5229

Sean Philips
100th Precinct Detective Squad
92-24 Rockaway Beach Blvd
Rockaway Beach, NY 11693

Michael Conte
103rd Precinct
168-02 91st Ave,
Jamaica, NY, 11432-5229

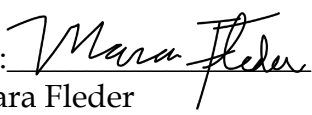
Alban Lekaj
103rd Precinct
168-02 91st Ave,
Jamaica, NY, 11432-5229

James O'Brien
103rd Precinct
168-02 91st Ave,
Jamaica, NY, 11432-5229

John Does #1-5
103rd Precinct
168-02 91st Ave,
Jamaica, NY, 11432-5229

Dated: October 15, 2024
New York, NY

WERTHEIMER LLC

By: 
Mara Fleder
14 Wall Street, Suite 1603
New York, New York 10005
(646) 344-4212
mara@joelwertheimer.com

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COMPLAINT

JURY TRIAL DEMANDED

PARTIES

1. Plaintiff Naomi Torres is a resident of Queens, New York.
2. Michael Conway is a New York City police officer who works in the 103rd Precinct.
3. Sean Philips is a New York City police officer who works in the 100th Precinct Detective Squad.
4. Michael Conte is a New York City police officer who works in the 103rd Precinct.
5. Alban Lekaj is a New York City police officer who works in the 103rd Precinct.
6. James O'Brien is a New York City police officer who works in the 103rd Precinct.
7. John Does #1-#5 are New York City police officers who work in the 103rd Precinct.

8. Defendant City of New York is a municipal corporation in the State of New York.

JURISDICTION AND VENUE

9. This Court has jurisdiction over this action pursuant to general jurisdiction under the New York State Constitution.

10. Venue is proper under CPLR § 503(a) because a substantial part of the events giving rise to the claim occurred in Queens County, New York.

PROCEDURAL REQUIREMENTS

11. Plaintiffs have complied with all statutory prerequisites to file this action.

12. Within 90 days of the events giving rise to these claims, Plaintiff filed her Notices of Claim with the New York City Office of the Comptroller and the New York Corporation Counsel. Plaintiff testified at a hearing pursuant to N.Y. General Municipal Law § 50-h, on September 12, 2023.

FACTS

13. On December 11, 2022, around 9:30pm, Plaintiff Naomi Torres called the police to help her after she was assaulted by her neighbor. Instead of coming to her aid, the officers unlawfully arrested Ms. Torres, harming her injured shoulder through unnecessary rough handling.

14. Ms. Torres suffers from crippling anxiety and dreaded having to leave her apartment, particularly at night.

15. She had a habit of turning her cellphone video recorder on whenever she left her apartment, in case she ran into any issues.

16. The night of December 11, 2022, Ms. Torres had the cellphone recording in her pocket when she left to take her dog out for a walk.

17. When they got back to her building and began walking down the hall towards her apartment unit, Ms. Torres saw her next-door neighbor had left shoes and garbage and other items out in front of his door, blocking her path.

18. Ms. Torres and the neighbor had gotten into verbal arguments about the hallway clutter in the past and the landlord of the building had listed signs around the building advising residents that they were not permitted to leave items in the hallway.

19. When Ms. Torres was walking down the hallway, she asked her neighbor to put his belongings away and clear the space.

20. Rather than apologize and take his items inside, the neighbor became combative and began arguing with Ms. Torres, cursing at her.

21. Ms. Torres took her phone out of her pocket, held it in her hand and cursed back at him.

22. As soon as Ms. Torres took the phone out of her pocket, showing the neighbor she was recording the interaction, he punched her in the face, causing her phone to crash to the ground.

23. The man then grabbed Ms. Torres and threw her against the wall. Ms. Torres's dog barked.

24. The man was about six feet tall, and 200 pounds, significantly taller and larger than Ms. Torres.

25. Ms. Torres, terrified, put her hands up, closed her eyes, and tried to push her attacker off her. She scratched his face and neck.

26. When she was able to break free, Ms. Torres reached down, grabbed her keys and phone, and yelled "he hit me!"

27. When Ms. Torres managed to get inside her unit, she locked the door and called 911. As she called for help, the neighbor kept punching her door.

28. Many uniformed police officers arrived at her building minutes later, climbed the stairway to Ms. Torres's hall and walked towards her unit.

29. When Ms. Torres saw the officers approaching her doorway, she became overwhelmed with the number of the officers present and her anxiety began to spike.

30. Ms. Torres tried to calm herself and told the officers she had just been punched in the face by her neighbor, showing them her injured face.

31. Officers then spoke to the neighbor.

32. After they spoke to both individuals, despite the fact that Ms. Torres had video evidence of the events that had just transpired, the officers decided to arrest both Ms. Torres and the neighbor.

33. Ms. Torres was shocked at being arrested after she had been the victim of the assault.

34. The Officers made the determination to arrest Ms. Torres even though Ms. Torres had video evidence showing that she had been the victim of the assault and acted in self-defense.

35. Officers forced Ms. Torres out of her apartment and handcuffed her in the hallway.

36. Ms. Torres cooperated with the arrest, but informed the officers that she had shoulder and back problems and asked them not to handcuff her arms behind her back.

37. Ms. Torres had a spinal fusion in 2016 and has had multiple surgeries on her left shoulder. The officers disregarded Ms. Torres's pleas and handcuffed her arms behind her back causing her serious pain.

38. Ms. Torres repeatedly asked the officers not to pull her shoulder. They refused.

39. Ms. Torres was taken to the 103rd Precinct and then transferred to Queens central booking.

40. As she was being driven to central booking, Ms. Torres's informed officers that the handcuffs were too tight. They ignored her, made a turn, and caused her shoulder to become dislocated. The pain was excruciating.

41. After 23 hours of detention, Ms. Torres was charged with harassment and assault. The charges were dismissed on January 4, 2023, before the next scheduled court date.

42. As a result of the police's unnecessary and aggressive force in their treatment of her, Ms. Torres experienced significant pain to her shoulder and chronic pain to her back.

43. She has also suffered from PTSD and generalized anxiety.

44. Before this incident, Ms. Torres was not afraid of the police and believed they would protect her when she needed them. She is now terrified to ever call 911 again.

FIRST CLAIM FOR RELIEF

Excessive Force/Assault and Battery

Under New York City Law Administrative Code § 8-801

Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

45. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

46. Defendants used force against Plaintiff that was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

47. The types and levels of force Defendants used against Plaintiff were unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

48. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury,

pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

49. Under New York City Law Administrative Code § 8-801 *et seq.* the City of New York is responsible for the actions of its officers and qualified immunity is not a defense to such force.

SECOND CLAIM FOR RELIEF

False Arrest Under 42 U.S.C. § 1983 and New York City Admin Code § 8-801 *et seq.*

50. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

51. Defendants had no judicial warrant authorizing them to seize Plaintiff.

52. Defendants collectively seized Plaintiff, restricting her freedom of movement, without privilege or lawful justification.

53. Plaintiff was conscious of her confinement by Defendants.

54. Plaintiff did not consent to her confinement by Defendants.

55. It was unreasonable for Defendants to believe that they had lawful cause to seize, detain, or arrest Plaintiff.

56. Thus, Defendants did not have individualized probable cause to seize, detain, or arrest Plaintiff.

57. Even if Defendants at one point had probable cause, the probable cause dissipated upon Defendants reviewing the video footage from Plaintiff showing

that she had been the victim assault and she was clearly acting in self-defense when she pushed the neighbor and scratched him to get away from him.

58. Defendants made the determination to arrest Plaintiff after having the opportunity to review the video and observe Plaintiff's facial injuries.

59. Those Defendants who ordered, effected, and otherwise participated in arresting Plaintiff subjected Plaintiff to unlawful seizures, false arrests, and/or searches and/or seizures of his persons and/or property.

THIRD CLAIM FOR RELIEF
Negligence

60. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

61. Within 90 days of the events giving rise to these claims, Plaintiffs filed a Notice of Claim with the New York City Office of the Comptroller and the New York Corporation Counsel.

62. Plaintiff testified at a hearing pursuant to N.Y. General Municipal Law § 50-h for her claim on September 12, 2023.

63. The City of New York and its officers owed a duty of care to the Plaintiff.

64. The arresting officers' conduct occurred while they were on duty during the course and scope of their duties and functions as New York City police officers, and/or while they were acting as agents and/or employees of Defendant City of New York, making Defendant City of New York liable to Plaintiff under the doctrine of *respondeat superior*.

65. Defendants had a duty to act with reasonable care toward Plaintiff, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that an injury to Plaintiff would probably result from their conduct.

66. Defendants' actions alleged herein constitute a gross breach of said duty and a gross deviation from accepted professional standards.

67. As a direct and proximate result of Defendants' actions, Plaintiff suffered the damages alleged herein.

68. Defendants' conduct amounted to utter recklessness, was so wantonly negligent as to be the equivalent of a conscious disregard for Plaintiff's rights, demonstrated a high degree of moral culpability, was designed to oppress and injure, and evinced a conscious indifference to the effects of their acts, entitling Plaintiff to an award of punitive damages.

PRAYER FOR RELIEF WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

1. awarding compensatory damages against the Defendants;
2. awarding punitive damages in an amount to be determined at trial;
4. awarding Plaintiff reasonable attorneys' fees and costs under applicable law; and
5. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
October 15, 2024

WERTHEIMER LLC

By: Mara Fleder
Mara Fleder
14 Wall Street, Suite 1603
New York, New York 10005
(646) 344-4212
mara@joelwertheimer.com